

25SMCV06493 25SMCV06493

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-16

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This is a motion for sanctions filed by the defense. There is no opposition. The theory is that the prior motion to quash/demurrer was frivolous. The court views this as a motion under section 128.5.

Assuming that proper notice was given, the motion is nonetheless DENIED. While the court did view the motion to quash as without merit, the court is not prepared to start awarding sanctions at this time for that motion.

And as to the demurrer, while the court agrees that it was not in proper format, the party was self-represented, and the court is going to give more leeway for things like that under the circumstances. The court is certainly not going to award 128.5 sanctions on that basis. The motion is DENIED.

The court also has plaintiff's ex parte application to shorten time to hear his motion for a protective order. The hearing date was reserved for November 2, 2026, although it appears that the reservation has lapsed. The application is DENIED. First, the motion has not yet been filed. The court is not going to start advancing dates for an unfiled motion.

Second, the court has no time to hear the substantive matter today. Third, there has been no showing as to why it is that the motion need be heard early or outside of the regular course.